Syllabus

NATIONAL REPUBLICAN CONGRESSIONAL COMMITTEE ET AL. *v.* BROWN ET AL.

ON APPLICATION FOR STAY

No. 26A274. Decided September 4, 2026

On March 30, 2026, the Federal Communications Commission (FCC) issued a "public notice" stating that political candidates, joint fundraising committees with noncandidate members, and political parties engaged in coordinated political activity were all entitled to favorable rates known as the "lowest unit charge" (LUC) for the use of any broadcasting station in the weeks leading up to primary and general elections. 47 U. S. C § 315(b)(1)(A). Four candidates for Congress filed an application for review with the FCC, arguing that only political candidates were entitled to the LUC and asking the full Commission to set aside the public notice as unlawful. While that application was pending, the candidates filed a petition for review in the Fourth Circuit against the FCC and the United States seeking the same relief. The Fourth Circuit expedited briefing and oral argument given that the FCC's LUC requirements were scheduled to take effect ahead of the upcoming midterm elections. On August 25, 2026, the Fourth Circuit concluded that it had jurisdiction, granted the candidates' petition for review, and set aside the public notice. The party committees (petitioners here) filed a motion for a stay pending disposition of a petition for writ of certiorari, which the Fourth Circuit denied. The party committees now seek a stay from this Court.

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Held: A stay is warranted under the factors the Court set forth in *Hollingsworth* v. *Perry*, 558 U. S. 183, 190 (*per curiam*). Because the candidates' application for review was pending when they filed their petition for review, the Fourth Circuit likely lacked statutory jurisdiction to address their challenge. The Communications Act contemplates that an aggrieved party will file an application for review with the Commission, that the Commission will resolve that application by order, and that public notice of that order will issue before an aggrieved party may petition for further review in federal court. See 47 U. S. C. §§ 155(c)(4), (7); see also 28 U. S. C. § 2344. The Fourth Circuit's holding to the contrary splits with every Circuit to have considered the issue. The party committees have also demonstrated that they will likely suffer irreparable harm absent a stay. Without favorable LUC rates, party committees must pay more for advertising space in the weeks leading up to the midterms. That injury, which implicates their First Amendment rights